

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

Date Purchased:

-----X
DAVID VADALA,

SUMMONS

Plaintiff,

Plaintiff designates NEW
YORK County as the place of
trial.

-against-

HILTON WORLDWIDE, INC., AMBASSADOR
PROTECTION SERVICES, INC., AMBASSADOR
INTELLIGENCE & SECURITY AGENCY, LLC,
MARTIN WALSH, THE CITY OF NEW YORK AND
JHONNY MILFORD,

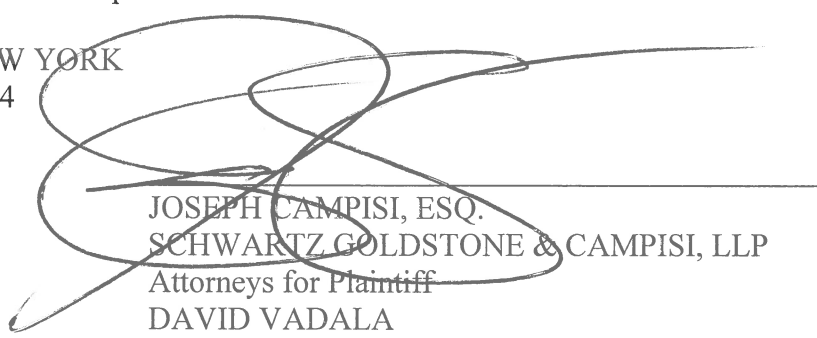
The basis of venue is:
Statutory

Defendants.

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, NEW YORK
December 29, 2014



JOSEPH CAMPISI, ESQ.
SCHWARTZ GOLDSTONE & CAMPISI, LLP
Attorneys for Plaintiff
DAVID VADALA
90 Broad Street, Suite 403
New York, New York 10004
(212) 962-2800
Our File No. 4562

DEFENDANTS' ADDRESSES:

HILTON WORLDWIDE, INC.
7930 Jones Branch Drive

McLean, VA 22102

AMBASSADOR PROTECTION SERVICES, INC.

28 Merrick Avenue, Suite 7

Merrick, New York 11566

AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC,

10 A LEVON LANE

MILLER PLACE, NY 11764

MARTIN WALSH

1700 York Avenue #10G

New York, New York 10128

THE CITY OF NEW YORK

100 Church Street

New York, New York 10007

JOHNNY MILFORD

100 Church Street

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAVID VADALA,

Plaintiff,

-against-

HILTON WORLDWIDE, INC., AMBASSADOR
PROTECTION SERVICES, INC., AMBASSADOR
INTELLIGENCE & SECURITY AGENCY, LLC,
MARTIN WALSH, THE CITY OF NEW YORK AND
JHONNY MILFORD,

Defendants.
-----X

Plaintiff, **DAVID VADALA**, by his attorneys, **SCHWARTZ GOLDSTONE & CAMPISI, LLP**, complaining of the Defendants, respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVID VADALA**

1. At all times herein mentioned, Plaintiff **DAVID VADALA** was, and still is, a resident of the County of Queens, City and State of New York.
2. That the cause of action alleged herein arose in the County of New York, City and State of New York.
3. That this action falls within one or more of the exceptions set forth in CPLR §1602.
4. At all times herein mentioned, Defendant **HILTON WORLWIDE, INC.** was, and still is, a domestic corporation organized and existing under and by virtue of the laws of the State of New York.
5. At all times herein mentioned, Defendant **HILTON WORLWIDE, INC.** was

Index No.:

Date Purchased:

VERIFIED COMPLAINT

and still is a foreign corporation authorized to do business in the State of New York.

6. At all times herein mentioned, Defendant **HILTON WORLWIDE, INC.** was, and still is, a business entity organized and existing under and by virtue of the laws of the State of New York.

7. At all times herein mentioned, Defendant **HILTON WORLWIDE, INC.** was, and still is, a business entity authorized to do business in the State of New York.

8. At all times herein mentioned, Defendant **AMBASSADOR PROTECTION SERVICES, INC.** was, and still is, a domestic corporation organized and existing under and by virtue of the laws of the State of New York.

9. At all times herein mentioned, Defendant **AMBASSADOR PROTECTION SERVICES, INC.** was, and still is, a foreign corporation authorized to do business in the State of New York.

10. At all times herein mentioned, Defendant **AMBASSADOR PROTECTION SERVICES, INC.** was, and still is, a business entity organized and existing under and by virtue of the laws of the State of New York.

11. At all times herein mentioned, Defendant **AMBASSADOR PROTECTION SERVICES, INC.** was and still is a business entity authorized to do business in the State of New York.

12. At all times herein mentioned, Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC** was, and still is, a domestic corporation organized and existing under and by virtue of the laws of the State of New York.

13. At all times herein mentioned, Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC** was, and still is, a foreign corporation authorized to do business in the State of New York.

14. At all times herein mentioned, Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC** was, and still is, a business entity organized and existing under and by virtue of the laws of the State of New York.

15. At all times herein mentioned, Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC** was and still is a business entity authorized to do business in the State of New York.

16. At all times herein mentioned, Defendant **MARTIN WALSH** was, and still is, a resident of the County, City and State of New York.

17. On December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was an employee of Defendant **HILTON WORLDWIDE, INC**

18. On December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was an employee of Defendant **AMBASSADOR PROTECTION SERVICES, INC.**

19. On December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was an employee of Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.**

20. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLWIDE, INC.** owned the premises located at 1335 Avenue of the Americas, County, City and State of New York.

21. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLWIDE, INC.** managed the aforementioned premises.

22. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLWIDE, INC.** maintained the aforementioned premises.

23. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLWIDE, INC.** supervised the aforementioned premises.

24. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLWIDE, INC.** employed Defendant **AMBASSADOR PROTECTION SERVICES, INC.**

25. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLWIDE, INC.** managed Defendant **AMBASSADOR PROTECTION SERVICES, INC.**

26. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLWIDE, INC.** supervised Defendant **AMBASSADOR PROTECTION SERVICES, INC.**

27. That on December 31, 2013, and at all times herein mentioned, Defendant **AMBASSADOR PROTECTION SERVICES, INC.** managed the aforesaid premises.

28. That on December 31, 2013, and at all times herein mentioned, Defendant **AMBASSADOR PROTECTION SERVICES, INC.** supervised the aforesaid premises.

29. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLDWIDE, INC.** employed Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.**

30. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLDWIDE, INC.** managed Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.**

31. That on December 31, 2013, and at all times mentioned herein, Defendant **HILTON WORLDWIDE, INC.** supervised Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.**

32. That on December 31, 2013, and at all times herein mentioned, Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.** managed the aforesaid premises.

33. That on December 31, 2013, and at all times herein mentioned, Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.** supervised the aforesaid premises.

34. That on December 31, 2013, and at all times mentioned herein, Defendants **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC,** and/or their agents, servants, employees and/or licensees operated, managed, maintained and controlled the aforesaid premises.

35. That on December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was acting as an agent of Defendant **HILTON WORLWIDE, INC.**

36. That on December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was acting as an agent of Defendant **AMBASSADOR PROTECTION SERVICES, INC.**

37. That on December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was acting as an agent of Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.**

38. Each Defendant herein was acting as an agent for each other Defendant herein

and as such each is vicariously liable for the others acts.

39. That on December 31, 2013, and at all times herein mentioned, Defendant **AMBASSADOR PROTECTION SERVICES, INC.** was present upon the premises known as 1335 Avenue of the Americas, in the County, City and State of New York with the consent and approval of the Defendant **HILTON WORLDWIDE, INC.**

40. That on December 31, 2013, and at all times herein mentioned, Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.** was present upon the premises known as 1335 Avenue of the Americas, in the County, City and State of New York with the consent and approval of the Defendant **HILTON WORLDWIDE, INC.**

41. That on December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was present upon the premises known as 1335 Avenue of the Americas, in the County, City and State of New York with the consent and approval of the Defendant **HILTON WORLDWIDE, INC.**

42. That on December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was present upon the premises known as 1335 Avenue of the Americas, in the County, City and State of New York with the consent and approval of the Defendant **AMBASSADOR PROTECTION SERVICES, INC.**

43. That on December 31, 2013, and at all times herein mentioned, Defendant **MARTIN WALSH** was present upon the premises known as 1335 Avenue of the Americas, in the County, City and State of New York with the consent and approval of the Defendant **AMBASSADOR INTELLIGENCE AND SECURITY AGENCY LLC.**

44. On December 31, 2013, while Plaintiff **DAVID VADALA** was lawfully present

in front of the aforesaid premises, he was caused to be intentionally, wrongfully, willfully, maliciously and with gross negligence, physically detained, assaulted, beaten, and battered by Defendants **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC, AND MARTIN WALSH** and was caused to sustain severe and permanent injuries.

45. The aforementioned occurrence took place due to the negligence of the Defendants **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC, AND MARTIN WALSH** their agents, servants, employees and/or licensees, acting within the scope of their authority, within the scope of their employment and in the furtherance of their agency.

46. The aforesaid occurrence and the results thereof were due to and caused by the joint, several and concurrent negligence of the Defendants **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC, AND MARTIN WALSH**, their agents, servants, employees and/or licensees in negligently, carelessly and recklessly causing, allowing and/or permitting the Plaintiff to be negligently, willfully, maliciously and with gross negligence physically detained, assaulted, and battered.

47. No negligence on the part of the Plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

48. That by reason of the foregoing, Plaintiff **DAVID VADALA** was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and as a result Plaintiff was and will

continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss therefrom.

49. That as a result of the foregoing, Plaintiff **DAVID VADALA** was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF DAVID VADALA**

50. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

51. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the Defendants **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC, AND MARTIN WALSH**, and their agents, servants, employees and/or licensees, all of whom were acting within the scope of their authority, within the scope of and in furtherance of their employment and in furtherance of their agency.

52. The acts complained of herein constitute intentional infliction of emotional harm and distress.

53. That by reason of the foregoing, Plaintiff **DAVID VADALA** was caused to sustain serious injuries and to suffer pain, shock and mental anguish; these injuries and their effects will be permanent; as a result of said injuries Plaintiff has been caused to incur and will continue to incur expenses for medical care and attention; and, as a further result, Plaintiff was and will continue to be rendered unable to perform his normal activities and duties and in consequence has sustained a loss therefrom.

54. That as a result of the foregoing, Plaintiff **DAVID VADALA** was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVID VADALA**

55. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

56. The above mentioned occurrence, and the results thereof, were caused by the joint, several and concurrent negligence of the Defendants **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC**, and/or said Defendants' agents, servants, employees and/or licensees in the operation, management, maintenance, supervision and control of the aforesaid premises and persons within said premises; and in being otherwise negligent and careless.

57. Prior to December 31, 2013, Defendant **MARTIN WALSH**, was known, or should have been known, by **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC**, to be unruly, vicious and possessed an assaultive propensity and known to be unruly and to verbally threaten, harass, and/or attack other human beings.

58. As a result of the foregoing, Plaintiff was caused to sustain serious injuries and to have suffered pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; and Plaintiff was, and will continue to be rendered unable to perform his normal activities and duties and have sustained a resultant loss therefrom.

59. That as a result of the foregoing, Plaintiff was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVID VADALA**

60. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

61. On December 31, 2013 Defendants **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC**, negligently caused plaintiff **DAVID VADALA** to be assaulted at the aforementioned premises.

62. On December 31, 2013 Defendants **HILTON WORLDWIDE, INC., AMBASSADOR PROTECTION SERVICES, INC., AMBASSADOR INTELLIGENCE & SECURITY AGENCY, LLC**, negligently failed to prevent an assault from being perpetrated upon the Plaintiff.

63. By reason of the above stated matters, Plaintiff was caused to sustain serious injuries and to have suffered pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to incur expenses for medical care and attention; and Plaintiff was, and will continue to be rendered unable to perform his normal activities and duties and have sustained a resultant loss therefrom. That as a result of the foregoing, Plaintiff was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF DAVID VADALA**

64. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

65. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society.

66. That as a result of the foregoing, Plaintiff was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVID VADALA**

67. Plaintiff repeats and realleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

68. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was, and still is, a municipal corporation.

69. That prior hereto on March 27, 2014, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the claimant's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

70. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

71. That on December 30, 2013, Plaintiff **DAVID VADALA** was lawfully in front of the premises known as and located at 1335 Avenue of the Americas, in the County, City and State of New York, when Defendants **THE CITY OF NEW YORK** and **JHONNY MILFORD** responded to that location.

72. At the aforementioned place Plaintiff **DAVID VADALA** was violently assaulted by an employee of the City of New York, employed by the New York City Police Department.

73. At the aforementioned place Plaintiff **DAVID VADALA** was violently assaulted by defendant **JHONNY MILFORD**.

74. At the aforementioned place Plaintiff **DAVID VADALA** was falsely arrested and illegally imprisoned for a period of more than 24 hours even though respondent knew or should have known that there was no merit to the arrest and incarceration and said arrest and incarceration were malicious and illegal and caused by reason of the negligence, recklessness and maliciousness of **THE CITY OF NEW YORK** by its agents, servants, employees and/or licensees.

75. Said arrest (Arrest # M14600015, Complaint # 2013-018-11392) was effectuated by a Defendant **JHONNY MILFORD**, a New York City Police Officer employed at the 18th police precinct.

76. Plaintiff, **DAVID VADALA**, was wrongfully imprisoned at both the scene of the occurrence and continuing thereafter at the 18th police precinct and thereafter in Central Booking facility. This imprisonment lasted for over 24 hours.

77. As a result of the aforementioned, plaintiff, **DAVID VADALA**, sustained severe and serious personal injuries and other consequential damages, plaintiff's health was impaired, plaintiff suffered great mental distress, his reputation and character were injured, his earning

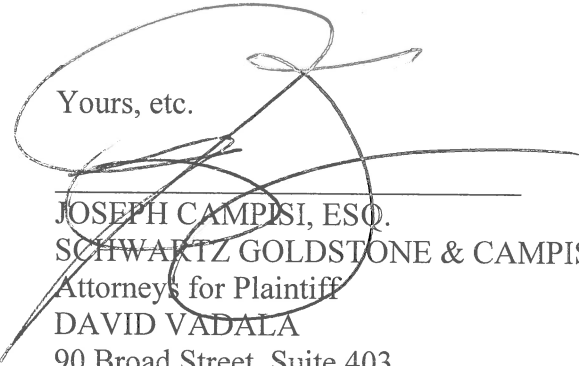
power was permanently impaired, large sums of money were expended by plaintiff in his defense.

78. That as a result of the foregoing, Plaintiff **DAVID VADALA** was damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands judgment against Defendants in an amount to be determined upon the trial of this action, together with the costs and disbursements of this action.

Dated: New York, New York
December 29, 2014

Yours, etc.



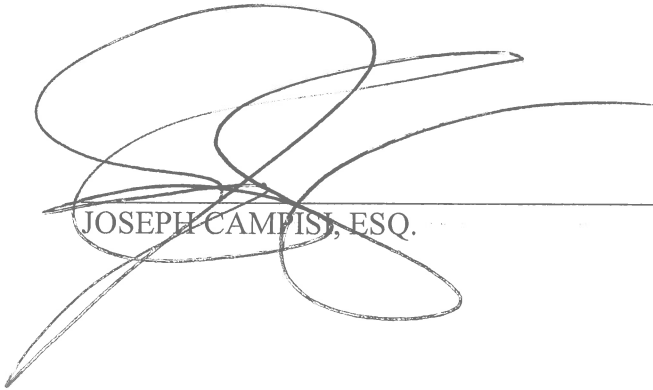
JOSEPH CAMPISI, ESQ.
SCHWARTZ GOLDSTONE & CAMPISI, LLP
Attorneys for Plaintiff
DAVID VADALA
90 Broad Street, Suite 403
New York, New York 10004
(212) 962-2800

ATTORNEY'S VERIFICATION

JOSEPH CAMPISI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at **SCHWARTZ GOLDSTONE & CAMPISI, LLP**, attorneys of record for Plaintiff, David Vadala. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
 December 29, 2014



JOSEPH CAMPISI, ESQ.